

26VECV03416 26VECV03416

County: los-angeles

Division: Civil Law and Motion

Department: T

Hearing date: 2026-07-30

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26VECV03416 Shirley Capital v Dean

TENTATIVE RULINGS

Demurrer: Overruled. Defendant to answer within 10 days.

Ex parte application: Granted. The court sets the hearing for the defendant's motion to deem request for admissions admitted on 8/5/2026 at 8:30 a.m. The motion was filed on 7/29/2026 by email. Therefore, the motion must be heard by 8/5/2026. Opposition is due by 8/4/2026. Reply is by oral argument at the hearing. Notice by moving party.

However, it appears that the motion may have been filed prematurely. Discovery is due 5 calendar days from date of service. If served by email, then it would be 7 calendar days. Here the RFA's were served on 7/20/2026 by email making the responses due by 7/27/2026. Pursuant to CRC 2.551, defendant filed and served a Consent to Electronic Service and Notice of Electronic Service address on 7/13/2026. If the answers were served by mail, then they may not have arrived yet.

In the future, defendant is ordered that the full name of the person serving her documents appear on the proofs of service. On one POS, the name appears as C. Cooper. On another, the name is JD Brown. The full names must be used.